

9:00 A.M.

Calendar Line # 3

Case Name City of San Jose vs Roy Abbott

Case No. 24CV442351

Permanent Injunction and Entry of Default Judgment

I. BACKGROUND

This case stems from a Complaint filed by Plaintiff City of San Jose (“City”) against Defendant Roy Abbott (“Abbott”) on July 2, 2024 alleging public nuisance and unlawful and unfair business practices at the residential property located at 1906 Somersworth Drive, San Jose, California 95124 (“Property”). (Complaint at p. 1-10). Plaintiff City sought declaratory and injunction relief as well as pecuniary penalties and attorney’s fees and costs. (*Id.*, at p. 11-12). On July 17, 2024, Plaintiff City obtained a Temporary Restraining Order that the Honorable Helen E. Williams authorized. On September 5, 2024, Plaintiff City sought a Preliminary Injunction against Defendant Abbott that was authorized by Judge Williams and filed on September 9, 2024.

The City also moved for default judgment against the Defendant. On September 5, 2024, Entry of Default was entered against Defendant Abbott. On March 4, 2025, Defendant Abbott filed a motion to set aside the default and for leave to file an answer that was heard on September 30, 2025 by the Honorable Shella Deen. After the hearing, Judge Deen granted the defendant’s motion to set aside the default based on a plausible showing of mistake, inadvertence, and excusable neglect and directed Defendant to file responsive pleadings to the Complaint within ten court days. The City’s request for penalty in the amount of \$1,000.00 was denied without prejudice. Defendant Abbott filed an Answer on November 25, 2025 and then a First Amended Answer on December 23, 2025.

On May 20, 2025, Plaintiff City of San Jose filed this motion for permanent injunction and entry of default judgment against Defendant Roy Abbott.

Per Code of Civil Procedure section 1005(b) opposition papers were due on June 30, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the City’s moving papers including a notice of the motion for permanent injunction and entry of judgment (totaling 2 pages); memorandum of points and authorities in support of the motion (totaling 8 pages); Declaration of Vance Chang in support of Plaintiff’s motion (totaling 3 pages) and attached Exhibit ; Request for Judicial Notice and attached Exhibits A-C; proof of service; case status conference statements; and the pleadings.

II. LEGAL STANDARD

Pursuant to Civil Code section 3422, “a final injunction may be granted to prevent the breach of an obligation existing in favor of the applicant: (1) Where pecuniary compensation would not afford adequate relief; (2) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief; (3) Where the restraint is necessary to prevent a multiplicity of judicial proceedings; or (4) Where the obligation arises from a trust.” (Civ. Code § 3422).

A final judgment on the merits. (*Aspen Grove Condominium Association v. CNL Income Northstar LLC* (2014) 231 Cal.App.4th 53, 58).

“The first two statutory grounds embody the requirement that to obtain an injunction a plaintiff ordinarily must show that the defendant's wrongful acts threaten to cause irreparable injury, meaning injury that cannot adequately be compensated in damages.” (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1167).

III. ANALYSIS

On January 13, 2026, the parties filed status conference statements. It is undisputed that Defendant Abbott no longer resides at the Property. The defendant asserts that the City did not allege any recent wrongful acts by the defendant. Defendant Abbott is not seeking a termination of the preliminary injunction that was authorized on September 9, 2024. (Defendant's Case Management Statement, p. 2). However, Defendant Abbott seeks status quo to continue and that no permanent injunction be issued pending resolution of the criminal cases (Santa Clara County dockets C2407675 and C2512367) and this civil case. (*Id.*). Plaintiff asserts that the defendant's blanket assertion of his Fifth-Amendment rights to all facts is an insufficient response to the Complaint and argues that C2512367 is not related to the civil matter, but concedes that docket C2407675 involved overlapping facts in the civil matter. (Plaintiff's Case Management Statement, p. 2). Plaintiff objects to any stay in the civil proceedings and argues that the defendant has not filed a motion. The Court agrees that the motion at hand does not involve a motion to stay and will not address any stay at this time.

Plaintiff also argues, “Defendant has failed to oppose Plaintiff's Motion for Permanent Injunction and the Court should therefore grant Plaintiff's Motion.” (*Id.*). The Court rejects the argument that a failure to oppose a motion results in an automatic grant of a motion without further analysis. While the Court notes that a failure to oppose a motion leads to the presumption that there is has no meritorious arguments (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489), the Court analyzes the substantive merits of the request for a permanent injunction at this juncture.

Here, most notably, there is no final judgment. Permanent injunctions are obtained through judgment after trial. The plaintiff's motion for entry of default judgment is rendered MOOT as Judge Deen granted the motion to vacate the default entered on September 30, 2025. Defendant filed an Answer on November 25, 2025, and First Amended Answer on December 23, 2025 in response to the Complaint in this matter.

In *DVD Copy Control Assn., Inc. v. Kaleidescape, Inc.* (2009) 176 Cal.App.4th 697, 721–722, the Court held that: “It is common to speak of the need to show threatened irreparable harm as the basis for an injunction. (6 Witkin, Cal. Procedure (2008) Provisional Remedies, § 295, p. 236). But the concept of irreparable harm means more than harm that cannot be repaired. Irreparable harm includes “ ‘that species of damages, whether great or small, that ought not to be submitted to on the one hand or inflicted on the other.’ . . . [Citation.] . . . ‘The argument that there is no “irreparable damage,” would not be so often used by [defendants] if they would take the trouble to observe that the word “irreparable” is a very unhappily chosen one, used in expressing the rule that an injunction may issue to prevent wrongs ... which occasion damages estimable only by conjecture and not by any accurate standard.’ ” (*Wind v. Herbert* (1960) 186 Cal.App.2d 276, 285, 8 Cal.Rptr. 817). Irreparable harm may be established where there is the fact of an injury, such as that arising from a breach of contract, but where there is an inability to ascertain the amount of damage. In other words, to say that the harm is irreparable is simply another way of saying that pecuniary compensation would not afford adequate relief or that it would be extremely difficult to ascertain the amount that would afford adequate relief. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1167, 42 Cal.Rptr.3d 191; Civ. Code, § 3422.).”

Plaintiff City fails to show entitled to a permanent injunction. Critically, Plaintiff does not explain why a permanent injunction is needed as the defendant no longer resides at the Property, there have allegedly been no new violation of the preliminary injunction in place; pecuniary compensation would not afford adequate relief; no showing that it would be extremely difficult to ascertain the amount of compensation; that the restraint would prevent multiplicity of

judicial proceedings – in fact, there are two carinal case pending: Santa Clar County dockets C2407675 and C2512367 against the Defendant; and no showing that the obligation arises form a trust.

IV. CONCLUSION

Based on the foregoing, the plaintiff's motion for permanent injunction is DENIED without prejudice as premature on the grounds that there is no final judgment. The Preliminary Injunction executed by Judge Williams on September 9, 2024 remains in effect until a final determination of the merits of the claims at issue are adjudicated.

The plaintiff's motion for entry of default judgment is rendered MOOT as noted above based on the September 30, 2025 Court Order authorized by Judge Shella Deen granting the motion to vacate the default judgment.

The Court will prepare the formal Order.

Calendar Lines # 4

Case Name Leticia Reyes Parral vs Sandridge LLP et al

Case No. 24 CV451675

Motion for Leave to File

Before the court is Plaintiffs' motion for leave to amend the complaint to add punitive damages against defendant Coe Orchard Equipment, Inc. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

On October 12, 2023, decedent Ofelio Castro Reyes, Jr. ("Decedent") was in the course and scope of his employment with Kings FLC, a subcontractor hired, supervised and controlled by defendant Sandridge Partners L.P. ("Sandridge") to perform farming and harvesting work at defendant Sandridge's property located at Utica Avenue and 25th Street in Kettleman City, California ("Premises"). (Complaint, ¶¶3 and 14).

Decedent was operating a B8 R-Series Reservoir Cart ("Cart") to harvest pistachios when he was crushed to death by the screw conveyor in the equipment. (Complaint, ¶¶14 – 15). Defendant Coe Orchard Equipment, Inc. ("COE") is the designer, manufacturer, distributor, lessor and/or seller of the Cart. (Complaint, ¶¶4, 9, 12, and 15).

On November 13, 2024, plaintiffs Leticia Reyes Parral ("Parral"), individually and as successor-in-interest and personal representative of Decedent's estate, and Ofelio Castro Reyes, Sr., filed a complaint against defendants Sandridge and COE asserting causes of action for:

- (1) Premises Liability [against defendant Sandridge]
- (2) General Negligence [against defendant Sandridge]
- (3) Strict Products Liability—Design Defect
- (4) Strict Products Liability—Manufacturing Defect
- (5) Strict Products Liability—Failure to Warn
- (6) Products Liability—Negligence
- (7) Products Liability—Negligence—Failure to Warn

(8) Wrongful Death—Survival Action CCP 337.30

On January 3, 2025, defendant Sandridge filed an answer to plaintiffs' complaint.

On February 13, 2025, defendant COE filed an answer to plaintiffs' complaint.

On April 6, 2026, plaintiffs filed the motion now before the court, a motion for leave to amend the complaint to add punitive damages against defendant COE [and to correct the name of plaintiff Ofelio Castro Reyes, Sr. to Ofelio Castro Rivera].

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 473, subdivision (a)(1):

The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., §473, subd. (a)(1)).

“Leave to amend is liberally allowed.” (*Bettencourt v. Hennessy Industries, Inc.* (2012) 205 Cal.App.4th 1103, 1111). “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530). “Of course, if the proposed amendment fails to state a cause of action, it is proper to deny leave to amend.” (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230).

III. ANALYSIS

A. CORRECTION OF PLAINTIFF’S NAME - OFELIO CASTRO REYES, SR. TO OFELIO CASTRO RIVERA

There is no opposition to plaintiffs' request for leave to amend the complaint to correct the name of plaintiff Ofelio Castro Reyes, Sr. to Ofelio Castro Rivera.

B. MOVING ADD CLAIM FOR PUNITIVE DAMAGES AGAINST DEFENDANT COE

In *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 26 (*Searle*), the court wrote, “In California the award of damages by way of example or punishment is controlled by Civil Code section 3294, which authorizes that kind of award against a tortfeasor who has been guilty of ‘oppression, fraud or malice, express or implied.’” “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff *or* despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code §3294, subd. (c)(1); emphasis added).

To plead a “willful and conscious disregard of the rights of others,” a plaintiff need only allege, “that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211 (*Lackner*)). However, this alternative definition of malice also requires that the conduct be despicable. “‘Despicable conduct’ has been described

as conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. [Citation]. Such conduct has been described as ‘[having] the character of outrage frequently associated with crime.’” (*American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050). “[I]n cases involving conduct performed without intent to harm, a finding of ‘malice’ for punitive purposes requires proof by clear and convincing evidence that defendant’s tortious wrong amounted to ‘despicable conduct’ and that such despicable conduct was carried on with a ‘willful and conscious disregard’ of the rights or safety of others.” (See *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704 (*College Hospital*)).

Defendant COE contends the proposed amendment does not allege facts sufficient to support a claim for punitive damages because the factual basis for plaintiffs’ allegation that defendant COE was aware of the probable dangerous consequences of its conduct are two lawsuits filed by different plaintiffs involving allegations of death/ injury arising from equipment manufactured by COE. Defendant COE argues that even if these prior lawsuits placed it on notice that allegations have been made, they are only unproven allegations.

Regardless of whether the allegations made in the other prior lawsuits are ultimately proven true or not, plaintiffs’ allegation that defendant COE was aware of these prior lawsuits and the allegations contained therein is sufficient to allege here in this action that defendant COE was aware of the probable dangerous consequences of not including a guard mechanism. The proposed amended pleading also alleges a willful and deliberate failure to avoid such consequences. (See ¶¶21 – 22 of the proposed amended pleading). Although there are some decisions in which the court determined conduct was not despicable as a matter of law following the submission of evidence (see *Lackner, supra*, 135 Cal.App.4th at p. 1213), the court declines to make such a determination based solely upon a pleading or, in this instance, a proposed pleading.

Defendant COE makes no other argument concerning prejudice from the proposed amended pleading.

IV. CONCLUSION

Based on the foregoing, the plaintiffs’ motion for leave to amend the complaint is GRANTED. Plaintiffs shall file the proposed First Amended Complaint within twenty (20) days of this Order. The Court will prepare the Order.

Calendar Lines # 5

Case Name UHG I LLC vs Travis Fong

Case No. 25CV463382

Motion for Order to Deem Admissions Admitted

I. BACKGROUND

Before the court is Plaintiff UHG I LLC (“UHG”) motion for requests for admissions (“RFA”) to be deemed admitted against Defendant Travis Fong that was filed on October 20, 2025. No proof of service of the motion to the defendant was submitted.

Per Code of Civil Procedure section 1005(b) opposition papers were due on June 30, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).